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Democracy

IN PAKISTAN

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2020

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Democracy in Pakistan

Cell 1. INTRODUCTION

Democracy is a form of Government in which the people choose who will represent and rule over them. In effect it is a 'government of the people, by the people, and for the people' as quoted by U.S. President Abraham Lincoln. However, in Pakistan unfortunately, that has never been the case. The failure to establish viable democratic institutions and frequent constitutional breakdowns has led many to argue that democracy has failed and that it does not suit the genius of the people of Pakistan. Others go as far as to say that Islam in itself does not allow systematic opposition (Callard, 1957). This has been countered by many scholars who reason that democracy was never implemented in Pakistan in the real sense, therefore any judgment of a democratic failure would be unfair to its populace (Mahmood, 2002).

Cell 2. WHAT IS DEMOCRACY

The 2nd Millennium A.D. changed humanity in so many ways that it would not be possible to name them all here. However, the one thing that truly changed how humans interacted was the introduction of plural institutions and intrusive governments (Acemoglu, et al., 2012). From the signing of the Magna Carta in 1215 by King John to the introduction of Universal Suffrage in the 20th Century. A new concept of governance evolved which placed the rulers in front of the subjects they ruled and it was not as if these institutions were not there before 1000 A.D., from Governments in the different Greek States of antiquity (Cartwright, 2018) to the Roman Senate before Christ. The evolution was there however it was their acceptance that did not stay and hence they vanished. The first mentions of democracy as a concept of governance is not pin-pointed in history, it emerges somewhere between the English Civil War and the French Revolution when pluralistic institutions were laid in true means and the monarchs' power was clipped to great extents. It was from there that democracy thrived and later in the 19th Century, when American President Abraham Lincoln defined Democracy as a "Government of the people, by the people, and for the people". Democracy in its full sense was implemented in India by the British Raj.

Cell 3. ISLAM AND DEMOCRACY

Different scholars when analyzing the situation of governance in Pakistan usually attribute the failure of democratic institutions time and again to the Islamic nature of the Population, emphasizing how every military rulers has used the religious card when coming into power (Callard, 1957). How Muslims dynasties have used the concept of Caliph and Caliphate to setup Autocratic Monarchies i.e. The Ottomans, The Mughals, The Seljuk, The Abbasids etc. Every government drew its legitimacy from religion. However, the problem with this approach is history: for one thing the majority of Islamic Scholars are of the view that the era of the First Four Caliphs i.e. Abu-Bakr (RA), Umar (RA), Usman (RA), and Ali (RA) was the only era when Islamic governance was implemented in true spirit and could be considered as legitimate without doubt; the other problem lies in the assumption that the system of governance that the caliphs adopted was the **only** system Islam could ever provide. This cannot be accepted as at the time there was no concept of democracy, least not in the Arabian Peninsula. The only system of government that was available for the Prophet (SAW) and his companions to practice was that of an Empire from the Neighboring powers of Sisanie (Persia) and the Byzantium (Rome). The Muslims of the time adopted what was available to them and even provided a democratic element to it via the establishment of a Majlis-e-Shura (Council of Opinion), furthermore there were no father to son successions for the institution of the Caliph. The caliph was elected by the council with approval from the Populace.

Cell 4. ARE PAKISTANIS UNDEMOCRATIC

Another reservation that critiques hold is that Democracy has failed since it did not appeal to the Genius of the People of Pakistan and that the people of Pakistan are not capable of being ruled in a democracy (Mahmood, 2002). There is again a major fault with this approach, history. The people of Pakistan at the time of independence were the same people who voted for the Muslim league in the 1946 elections. Not only that, they were also the same people who voted for Congress in 1936 of their own volition. At the same time, we don't see real elections in Pakistan all the way till 1958. So how is it that the people who were democratic prior to 1947 became un-democratic after it? We shall expand on the idea in the paragraphs below.

4.1 DEMOCRACY IN UNITED INDIA AND MUSLIMS

When Allan Octavian Hume founded the Indian National Congress in 1885, he set the foundation of democracy in India. Which gave rise to democratic maturity in the Indians, Muslims or Hindus. This maturity was the very reason different parties like the Muslim league and Communist Parties were born in Colonial India. Indians used the democratic atmosphere to protest and complain against different laws implemented at the time, many of which were repealed or replaced. Therefore, to argue that the people of Pakistan – who were the subjects of British Raj in the first half of the 20th century – are not capable of ruling themselves via a democracy is misplaced and unfair at the same time.

4.2 THE MUSLIM LEAGUE

Another important point that must be cited is the evolution of Muslim league and different Islamic movements all over India, along with the demand for a separate homeland. The Muslims of India not only made a platform to be used for their interests but also used it to demand a separate homeland in 1940. This shows a deep democratic spirit in the Muslims. Furthermore, the same Muslim community voted for the Muslim league as their sole representative in India in 1946, supporting the cause of Pakistan and opening displaying their choice of what they wanted their future to be. To call them undemocratic nonetheless is unfair to the genius of the people.

4.3 AFTER PARTITION

As for why the people supported autocratic regimes and let tyrannical rulers stay in power is something that has no link with the choice of the people at all. The first ever democratic universal elections were held in 1970, 23 years after independence. Therefore, it is not that the people of Pakistan did not support democratic rule, it is that they were never given a chance to choose democracy or any other form of Government at all. The first constitution was made in 1956, under which election were to be held but that never happened and the constitution was all-together abrogated in 1958. Similarly, when the 1962 constitution was made it did not call for a direct election, rather the head of the state – who was head of the executive as well – would be chosen via an electoral college of 80,000 basic democracy units' representatives. From the discussion it can be clearly seen that any relation between democracy in Pakistan and the people of Pakistan is difficult to achieve if not impossible.

4.4 THE FIRST DEMOCRATIC ELECTIONS: 1970

As for when the people of Pakistan were given a chance to display their democratic maturity, they openly demonstrated their distrust in 1970 elections when they forsake Muslim league and other parties and voted for the Novice party of Zulfiqar Ali Bhutto. This showed how the people of Pakistan did not care for hereditary ideals or the concept of a single head as argued by Islamic critiques. They voted for change with complete democratic spirit.

Cell 5. THE PROBLEMS WITH DEMOCRACY

If we were to assume that the people of Pakistan were indeed democratic and never yielded in spirit to tyrannical rule, then we will have clarify as to why they allowed autocracy to flourish in the first place. The answer to that and the problems with democratic evolution were many. However a few of them attached to the strings of time held influence more than any other such factor.

5.1 A VOID: THE LOSS OF THE QUAID

The first amongst the many factors that hindered democratic upbringing in the state leaders was the demise of the Quaid-e-Azam, the father of Pakistan. The demise of the Quaid left a void in the leadership cadre that could not be filled by any leader of the time. It was indeed a huge-loss and happened at the worst time possible, as Ian Stephens writes in his book, "If he had not died then, but lived for another ten years... almost certainly Pakistan's bad years... the period between 1952 and 1958 would not have shaped themselves as they did (Stephens, 1963)". And there is ample reason for saying so, first the Quaid represented an authority unto himself. Being the father of the nation, he presided over cabinet meetings and his advice was, for all practical purposes, considered binding by the cabinet members, in other words as Keith Callard puts it, he was "the personification of the state (Callard, 1957)". And it was this authority that made Quaid all the more important for democracy in the country as he was a strong advocate of democracy. He separated the office of the Head of the State and the ruling party by rejecting to hold the office of President of the Muslim league when he was the Governor General, something that Liaquat Ali Khan reversed when the Quaid was no more (Mahmood, 2002).

5.2 POLITICAL PARTIES

With the loss of the father of the nation. Many moved to carry on his legacy, unfortunately however, the attempt backfired. The leaders of the time sought to succeed the Quaid by assuming his role, not to make a place of their own in the hearts of the people. This led to manifestos being based on personalities rather than policies, which led to opportunities for autocratic rulers to seize power. Using political parties as puppet governments, the head of states would appoint Prime Ministers and remove them at their own discretion. Absolve constituent assemblies on their whims. Leading to a strong hold of the head of state on Government decisions and day-to-day affairs of the state. But it is not as if the authority enjoyed by the Quaid is to blame here, it was the result of a sudden loss and opportunistic exploitation by adversaries of Pakistan.

5.3 BUREAUCRACY AND POLITICS

Bureaucracy in modern terms refers to government machinery that implements the laws made by the legislature and execute orders that appertain to those laws. In Pakistan unfortunately with the demise of the Quaid and lack of leadership at the time, many posts were filled by bureaucrats at the time. There were multiple instances of such postings for example the Appointment of Chartered Accountant Ghulam Muhammad as a Finance Minister by Liaquat Ali Khan in 1946 and later as Governor-General by Prime Minister Khawaja Nazimuddin in 1951, similarly the Appointment of Former Joint Secretary of Defense to the office of Defense Minister by Liaquat Ali Khan in 1946 and as Governor of Bengal in 1954. These appointments gave the bureaucracy an opening into politics which it exploited by further non-democratic appointments such as the appointment of Prime Minister Muhammad Ali Bogra and Appointment of Commander-in-Chief Ayub Khan as Defense Minister of Pakistan. The crux of the issue is that such appointments derail representation of the people in the decision making process since the appointees are responsible to the office that gave them their power. Not to the people, therefore any expectation of social welfare is out of the question as the first years of Pakistan witnessed.

5.4 THE MILITARY AND POLITICS

But that isn't the end of the story, after the Appointment of CnC Ayub Khan as defense minister Governor General Iskandar Mirza opened an avenue for the Military to assume its role in Politics of the country. An opportunity that was not let go by the incumbent CnC – and Defense Minister – who after only two years of the Constitutions birth and democratic rule in the country led a successful coup d'état that led to 10 years of Martial rule. Ayub Khan used the excuse of corrupt political practices and excessive exploitation of national resources to assume legitimacy. Unfortunately however, the same excuse was to be used by Military personalities to assume command multiple times in the future.

5.5 LUST FOR POWER

But in all instances of divergence from democratic spirit there were only a few personalities that jeopardized the system and assumed power dishonestly. Had the people been allowed to choose, the circumstances would no-doubt have been very different. Then again, the very reason why actual elections were not held till 1970 was because heads of state and presidents that were holding power with no legitimate backing did not want to lose power. Bureaucratic background was no justification for being appointed as a head of state nor was being a CnC therefore direct elections were avoided by the incumbents at the time and democracy was compromised. The consequence was compromise of the wishes of the people.

Cell 6. 1988: DEMOCRATIC GOVERNMENT

In 1988 the country experienced for the first time a stable democracy after a decade of Martial Law and dangerous conflict on its western Border. It was a turning point for Pakistan as for the first time in more than a decade actual democratic elections were held. Different political parties with fairly new faces and manifestos pleaded to the people for representation. The Pakistan People's Party emerged victorious with Prime Minister Benazir Bhutto at the helm. Much was expected from the government, however disappointment followed as rampant corruption and nepotism prevailed. Since the government assumed their role from the will of the people, it sought to remain in power via street politics. Campuses were allowed to hold student unions where students from different parties usually brawled over petty issues (Paracha, 2018). As the law and order deteriorated, the then President of Pakistan used his constitutional power of article 58-2(b) to dissolve the national assemble and held fresh elections owing to the worsening law and order situation.

6.1 BENAZIR IN POWER

Pakistan's first experience of democracy was not quite what it had expected. Political affiliations did more harm than good and showed the ugly side of Pakistani mindset towards politics. However, did this go on to show that the People were indeed not worthy of being ruled via a democratic setup? The next democratic government went to show that this was indeed not the case as the Government of Islami Jamhuri Ittehad headed by Nawaz Sharif in 1991 spearheaded economic reforms as a way of resuming power in the next turn instead of solely relying on street politics. However politics is not a smooth affair and inter-party rivalries can too jeopardize the system. A non-cooperating opposition and revenge politics too leads to deteriorating law and order. Which was demonstrated in legal affairs when the IJI government was sent home with the same 58-2(b) constitutional privilege of the president.

6.2 SHARIF AND POLITICS

The 1990s decade witnessed 4 governments that left the National Assembly without completing their tenure. This was at the time a major constitutional problem that although provided for a parliamentary form of government but threatened the system with a constitutional privilege for the head of state that gave him a veto on the government's decisions. Pakistan had seen a decade of democratic governments and was set on correcting this problem when in 1997 Prime Minister Nawaz Sharifs' government passed

the 13th Constitutional Amendment that removed the article 58-2(b) thereby lifting the constraints placed on the Government in making its decisions independently.

6.3 THE PRESIDENCY AND THE PARLIAMENT

This was no doubt a good step for the future, but it left a vacuum in accountability of the government for when it would overstep its boundaries with no mechanism for ousting the government when the situation was out of hand. Therefore when in 1998 Pakistan and India both sent deep concerns for a peaceful future by testing Atomic bombs with the two countries almost going to war with the Kargil episode of 1998, it gave an excuse to the then CnC Pervaiz Musharraf to assume power via a coup in 1999. Suspending the 1973 constitution once again. The situation of the world at the time was not favorable for Pakistan that supported the Taliban in Afghanistan and were in possession of Atomic Bombs, at the same time a coup led to democratic sanctions as well. The world now was not a place for military regimes, it favored Democratic regimes. But the constitutional evolution in Pakistan had not reached an equilibrium with respect to proper accountability just yet.

Cell 7. AFTER 2000

7.1 A REMEDY

That accountability was provided via the 18th amendment during the Zardari Government in 2010 when it removed the 17th amendment provisions that resembled those of 58-2(b). Instead it provided a new sense of democracy when Prime Minister Yousaf Raza Gilani was removed from the seat of Prime Minister-ship via a verdict of the Supreme Court and yet still the government remained in power. It was for the first time a new change in approach to how Parties conducted their business in Pakistan. At the time critics described the removal was nothing more than a cosmetic make up as the real holder of power was President Zardari. However, the change manifested in its truest sense when in 2017 Prime Minister Nawaz Sharif was removed from his seat with the PML-N government still intact and in Power (Bhatti, 2017).

7.2 THE FIRST TRANSITION

This was an important step for actual democratic transitions which happened for the first time in Pakistan's history in 2013 and with a happy succession in 2018 once again. With these recent developments after the beginning of the 21st Century, Pakistan is set to become a true democratic country. However, there are certain problems that she will have to take care of. The past has been grim and the future seems bright with a changing mindset in the populace towards the working of governments, of the need for better representation and how democracy is an important diplomatic soft power to reckon with.

Cell 8. A STABLE PRESENT AND THE FUTURE

With the invention of the internet and the advent of globalization more and more Pakistanis today seem to favor democracy over any other form of government. This is due to the interaction of our youth with people from all over the world plus the now easier physical access of the educated class to the rest of the world. Seeing firsthand the ability of people in the developed world to demand from their governments and choose their governments in a sensible way. The people of Pakistan today seem to prefer democratic governments and their voices being heard.

8.1 CHANGING MINDSETS AND DETERRENCE TO INDIA

Similarly, with an adversary like India declaring itself as the world biggest democracy and using that claim as a diplomatic leverage to legitimize its standing on different world affairs. Pakistan too needs to put in more efforts to democratize itself lest it might be outdone in the international arena. Pakistan is a nation of 220 Million souls, with the 5th largest population in the world. If we were to have a democratic government in place – which we do – we would be able to impress upon the world the wishes of a sizable proportion of humanity in the same way that India does. Therefore democracy is not only needed by Pakistan, it is important for Pakistan to realize its actual prowess.

Cell 9. CONCLUSION

Pakistan therefore is a democratic nation with a checkered history that at times betrayed its nature and at times supported it. Nonetheless, Pakistan today has evolved to show its true democratic nature despite the multiple attempts made to make prove it otherwise. Democracy is the only form of government that the future will allow and Pakistan today seems to understand the gravity of that. It has transformed the way it has seen democracy from the time when Parties were fiefs of certain personalities to now when they can be run without the leader as the head of the government. Democracy in Pakistan today is slowly and gradually converging to the state that her father the Quaid-e-Azam Muhammad Ali Jinnah envisioned, a free democratic Islamic Pakistan where the people will rule themselves in accordance with the Islamic code of life.

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